DINGAANI THOMAS MBONDIYA
versus
CHRISTON CHIRIDZA

HIGH COURT OF ZIMBABWE
DUBE-BANDA J
HARARE 4 September & 5 September 2025

Objection to bar a witness from testifying

Mrs. M. Dube-Tachiona for the plaintiff
Ms. N.C. Zhou or the defendant

DUBE-BANDA J:

[1] This court is in the process of hearing evidence in this trial. After the plaintiff closed his case, Mrs. *Dube-Tachiona* counsel for the plaintiff raised two objections. First, counsel objected to the admissibility of the "defendant's supplementary summary of evidence" and submitted that it be expunged from the record. Secondly, counsel objected to the defendant's proposed witness one Nyashadzashe Munyaradzi Maphosa ("Maphosa") and submitted that she be barred from testifying in this trial.

[2] Mrs. *Dube-Tachiona* attempted to raise these objections during the plaintiff's case. I took the view that it was premature to raise such issues at that stage of the trial, and I declined to entertain the objections at that stage. At that stage the court was still hearing the plaintiff's case, and I did not want to interrupt the flow of the case. Mrs. *Dube-Tachiona* attempted to argue against the directive that the court would not hear the objections during the plaintiff's case. I strongly rebuked her for that conduct and called her to order. It is trite that once a court makes a directive or order etc., it is impermissible for counsel to continue with argument on the same issue. After the closure of the plaintiff's case, although it was still premature to raise these objections i.e., before the defendant opened his case, and even before Maphosa was called to the witness stand to testify, I permitted these objections to be argued at this stage to enable the defendant to know at the time before he testified whether he would be permitted to call Maphosa as his witness.

[3] To put these objections into context, it is important to state that the plaintiff is suing the defendant for adultery damages. The plaintiff case is predicated on the allegation that the defendant committed adultery with one Maphosa, to whom the plaintiff is married in terms of the Marriage Act [*Chapter 5:11*] and the marriage subsists. The plaintiff testified and further called the testimony of three witnesses. Thereafter he closed his case.

[4] The facts giving rise to this objection are that on 4 September 2025, a day set for the continuation trial, the defendant filed a supplementary summary of evidence. According to this summary, he intends to call Maphosa, as his witness. It is common cause that this proposed witness is a spouse of the plaintiff. She is the one at the center of this dispute, in that she is alleged to have an extra-marital relationship with the defendant.

[5] Mrs. *Dube-Tachiona* argued that it was not in the interest of justice to allow the defendant to produce the supplementary summary of evidence. It was contended that its production will prejudice the plaintiff in the prosecution of his case, in that he has testified and closed his case without having had notice that the defendant would call Maphosa as his witness. In addition, it was argued that this document was not discovered in terms of the requirements of the rules of court, and that her evidence is not referred to in the original summary of evidence. Further that in the pretrial conference minute the defendant said he was going to be the only witness in his case. It was argued that the plaintiff testified without knowing that Maphosa would testify, and if allowed to testify he would not have an opportunity to challenge her with evidence. It was further argued that the defendant had always known of the existence of Maphosa but did not include the summary of her evidence in the original summary filed of record.

[6] Counsel submitted further that the defendant, after listening to the plaintiff case, now wishes to use Maphosa to challenge the evidence he did not challenge in cross-examination. Counsel placed reliance on the case of *Construction Resources Africa (Private) Limited* v *Central African Building Construction Company (Private) Limited* (Case SC 88 of 2013; REF SC 402 of 2012; SC 51 of 2018) [2018] ZWSC 51 (19 March 2018) for the argument that Maphosa be barred for testifying in this trial. Counsel argued that the objections be upheld.

[7] *Per contra*, Ms. *Zhou* counsel for the defendant argued that the court has no authority to deny a litigant the right to call a witness. Counsel argued that the plaintiff can challenge the evidence of Maphosa in cross examination. It was argued that the case of *Construction Resources Africa (Private) Limited* v *Central African Building Construction*

Company (Private) Limited (Case SC 88 of 2013; REF SC 402 of 2012; SC 51 of 2018) [2018] ZWSC 51 (19 March 2018) is distinguishable from this case in that it relates to an application to adduce further evidence on appeal. According to Ms *Zhou,* the issues raised by the plaintiff are not issues of admissibility, but issues of weight. Counsel argued that the objections be overruled.

[8] I think it is important to state upfront that a summary of evidence is not a document, in the sense that it is not intended to be produced as documentary exhibit. The rules of admissibility of a document do not apply to it. It is a process required by r 49(6) and (7) of the High Court Rules, 2021 to be filed before the holding of a pretrial conference before a judge. My view is that its purpose is to give a summary of the evidence that a litigant proposes to present at the trial for the benefit of the opposing litigant. It enables the opposing litigant to prepare for trial.

[9] In terms of r 49(6) and (7) of the High Court Rules, 2021, this process must be filed before the holding of a pretrial conference before a judge. In *casu,* it was filed after the plaintiff had testified and on the date of the continuation of trial. It was filed at this late stage without the leave of court. Ms *Zhou,* though opposing the expunging of the summary from the record, did not defend the matter in which it was filed. My view is that it will not be in the interest of justice to expunge it from the record. This is a case where the rules might have to recede to the background and give way to the interest of justice. See *Chamisa* v *Mnangagwa & Ors* CCZ–21–19 at p 38; *Eke* v *Parsons* 2016 (3) SA 37 (CC); *Stuttarfords* v *Madzudzu* HH 33-03. I am taking this position because, no matter its length, covering nineteen paragraphs and three pages, it remains a mere summary. It is not evidence. It serves to inform the plaintiff of the evidence that might be presented from Maphosa to enable him to prepare and give instructions to counsel for the purposes of managing his case going forward and cross examination. It is for these reasons that in the interest of justice I condone, in terms of r 7 of the High Court Rules, 2021 the late and unsanctioned filing of the defendant's supplementary summary of evidence. In the circumstances, the objection to the defendant's supplementary summary of evidence cannot succeed.

[10] I now turn to the objection against the calling of Maphosa as a witness. Notwithstanding the fact that she is a spouse to the plaintiff, s 6(2) of the Civil Evidence Act [*Chapter 8:01*] makes her a competent and compellable witness in these proceedings. Mrs. *Dube-Tachiona* argued that the plaintiff would be hamstrung in the cross

examination of Maphosa because she would enjoy the protection of s 6(3) of the Civil Evidence Act which say: "No person shall be compelled to disclose any communication, whether oral or in writing, made by him to his spouse or made to him by his spouse during their marriage." My view is that this is not an issue that can concern this court at this stage, i.e., before the witness even takes the witness stand to testify. It is an issue that will have to be dealt with as it arises during the testimony of the witness.

[11] Further counsel argued that should this court allow this proposed witness to testify, the plaintiff might apply to re-open his case. Again, this is not an issue that can be decided at this stage of the proceedings. It may have to be dealt with on its merits at the time it arises. In addition, counsel argued that the defendant having heard the evidence of the plaintiff intends to call Maphosa to close the gaps which he did not deal with in cross examination. In this context, I understood counsel to be arguing that Maphosa would not testify to 'original knowledge' but on 'implanted knowledge.' My view again is that this is not an issue that can be assessed and determined in abstract. In the event it arises, it can only be assessed and determined at the end of the trial.

[12] On the contention that the evidence of Maphosa would be prejudicial to the plaintiff. I take the view that again this is an issue that will have to be dealt with when it arises or at the end of the trial when the court assesses the credibility and weight to attach to any piece of evidence before it. What this court cannot do is to bar a witness from testifying on the argument that her evidence would be prejudicial to the opposing party. In addition, I agree with Ms. *Zhou* that the case of *Construction Resources Africa (Private) Limited* v *Central African Building Construction Company (Private) Limited* (Case SC 88 of 2013; REF SC 402 of 2012; SC 51 of 2018) [2018] ZWSC 51 (19 March 2018) is distinguishable from this case in that it relates to an application to adduce further evidence on appeal. This is not an appeal. This court is sitting as a court of first instance.

[13] Generally, the courts have no power to bar a litigant from calling a witness. Baring a litigant from calling a witness would amount to a serious infringement of the right to a fair hearing. See *Nguti* v *Anthonissen* (I 93/2015) [2017] NAHCNLD 24 (27 March 2017) (Namibia); *S* v *G* (HH 46 of 2002) [2002] ZWHHC 46 (9 April 2002); *S* v *Bashi Mapogo* CRTF 20-05 [Francistown 13, 14/11 & 19/12/06, a Botswana case (unreported); *Lufu* v *The State* [1998] BLA 562 at 655 G-H (Botswana); *Happy Mbewe* v *The People* (1983) Z.R. 59 (H.C.) (Zambia). The witness must be allowed to take the witness stand and testify. Should her evidence or part of it be objectionable, the court will deal with that

issue at the stage it arises in the trial. In essence whether the evidence of Maphosa would be prejudicial to the plaintiff, or not from 'original knowledge' but on 'implanted knowledge' are issues of weight that the court would deal with when assessing the credibility, demeanor, etc. at the end of the trial. These are issues of evidence and cannot be resolved in abstract. See *Apostolic Faith Mission in Zimbabwe* v *Masamba & Others* HH-505-25. It is for these reasons that the objection against the testimony of Maphosa cannot succeed.

In the result, I order as follows:

a) The objection against the defendant's supplementary summary of evidence filed on 4 September 2025 and that it be expunged from the record is overruled.
b) The objection against the testimony of Nyashadzashe Munyaradzi Maphosa from testifying as a defendant's witness is overruled.

DUBE BANDA J: …….

Dube-Tachiona & Tsvangirai, plaintiff's legal practitioners
Chatsama and Partners, defendant's legal practitioners